

INTELLIBASE AI SERVICE SUBSCRIPTION AGREEMENT

No.:

This Agreement is made and signed on by and between:

1. Provider

Provider / business name :
Business ID (NIB) :
Address :
Represented by :
Title :

as owner of the IntelliBase AI service (intellibaseai.com), hereinafter the "**Provider**".

2. Customer

Hospital / clinic name :
Operating licence no. :
Tax ID (NPWP) :
Address :
Represented by :
Title :
Email / phone :

hereinafter the "**Customer**". The Provider and the Customer are together the "Parties".

ARTICLE 1. DEFINITIONS AND SCOPE

1. **Service:** the IntelliBase AI web-based software that answers the Customer's staff questions based on Customer Documents, including the integrations available on the chosen Plan (Slack, public API, Google Drive import).
2. **Customer Documents:** files the Customer uploads or imports into the Service (PDF, DOCX, XLSX and other supported formats), together with their derived data (text chunks and embedding vectors).
3. **User:** an employee or other person given an account by the Customer's administrator.
4. The Provider grants the Customer a non-exclusive, non-transferable right to use the Service during the Term, solely for the Customer's internal purposes.
5. The Service is intended for questions about internal documents (SOPs, policies, work guidelines). **The Service is not a clinical decision support tool** and must not be used as the sole basis for a patient's diagnosis or treatment.
6. The Customer shall not upload medical records or identifiable patient data unless agreed in writing in an addendum to the Data Processing Agreement, with additional safeguards.

ARTICLE 2. PLANS, FEES AND PAYMENT

1. The Customer selects one of the following Plans by ticking the box. Prices exclude VAT where the Provider is a VAT-registered entrepreneur (PKP).

	Plan	Price per month	Max. users	Max. documents	Questions per day (company / per user)
☐	Pro	IDR 1,500,000	25	300	300 / 60
☐	Enterprise	IDR 4,500,000	150	1,000	2,000 / 400
☐	Custom				

2. If the Customer installs its own AI provider API keys (BYOK), question limits do not apply. User and document limits still apply, and the Plan price is unchanged.
3. Billing period: ☐ 1 month ☐ 12 months, paid in advance within 14 days of the invoice date.
4. Payment method:
- ☐ Midtrans (virtual account / card)
- ☐ Bank transfer to the Provider: Bank Account no.
- Account name
5. The subscription does not renew automatically. The Provider sends a renewal invoice no later than 14 days before the period ends.
6. If renewal payment has not been received, the Customer has a 7-day grace period with full access. After that the account moves to the free plan (Starter). Documents and User accounts above the free plan's limits are **frozen, not deleted**, and are reactivated as soon as payment is received.
7. Price changes do not apply to periods already paid and are notified at least 30 days before the next period.

ARTICLE 3. OBLIGATIONS AND SUPPORT

Provider obligations

1. Provide the Service according to the Plan and keep it secure in accordance with the Data Processing Agreement (Annex A).
2. Target Service availability of 99% per month, excluding scheduled maintenance announced at least 24 hours in advance. This target is best effort, not a guarantee with service credits, unless otherwise agreed for a Custom Plan.
3. Respond to support requests via hello@intellibaseai.com or WhatsApp within 1 business day (Monday to Friday, 09:00 to 17:00 Western Indonesia Time).
4. Notify the Customer at least 30 days before any change that reduces the Service's core functions or replaces an AI sub-processor.

Customer obligations

1. Appoint an administrator to manage User accounts, including requesting deactivation of departing employees' accounts. Appointed administrator: (email:).
2. Ensure it has the right to upload every Customer Document and does not upload patient data without written agreement as set out in Article 1(6).
3. Keep account credentials confidential and promptly report any suspected unauthorised access.
4. Verify the Service's answers against the cited source documents before using them for important decisions. AI answers can be wrong even when citations are shown.

ARTICLE 4. DATA, CONFIDENTIALITY, INTELLECTUAL PROPERTY AND LIMITATION OF LIABILITY

1. **Data ownership.** Customer Documents and chat history remain the Customer's property. The Provider processes them only to run the Service, in accordance with the Data Processing Agreement (Annex A), which forms an integral part of this Agreement.
2. **Processing by AI providers.** The Customer understands that document contents are sent to third-party AI providers (Google Gemini and Groq) for indexing and answer generation, outside Indonesia, as detailed in Annex A.
3. **Confidentiality.** Each Party shall keep confidential the other Party's non-public information obtained under this Agreement, during the Term and for 2 years afterwards, unless required by law.
4. **Intellectual property.** The IntelliBase AI software, brand and documentation remain the Provider's property. The Customer obtains no rights in them beyond the access right in Article 1.
5. **Limitation of liability.** The Provider's total liability for any claim relating to this Agreement is limited to the fees paid by the Customer in the 12 months before the claim. The Provider is not liable for indirect loss, loss of profit, or decisions taken on the basis of the Service's answers without verification against the source documents.
6. The limitation in paragraph 5 does not apply to loss arising from the Provider's wilful misconduct or gross negligence.

ARTICLE 5. TERM, TERMINATION AND GOVERNING LAW

1. This Agreement takes effect on for 12 months and may be extended by paying for the following period.
2. Either Party may terminate this Agreement with 30 days' written notice. Fees for the current period are not refunded, unless termination is caused by the Provider's breach.
3. Either Party may terminate this Agreement immediately if the other Party commits a material breach and fails to remedy it within 14 days of written notice.
4. After this Agreement ends, the Customer may request an export of chat history within 30 days. The Provider deletes all Customer data no later than 30 days after a deletion request, in accordance with Annex A.

5. This Agreement is governed by the laws of the Republic of Indonesia. Disputes shall first be settled amicably. If no settlement is reached within 30 days, disputes shall be settled at the District Court of
6. This Agreement is made in Indonesian and English. In the event of any discrepancy in interpretation, the Indonesian version prevails.

Annex A: Data Processing Agreement. Annex B: Security Questionnaire Answers (for information).

This Agreement is made in 2 (two) counterparts, each bearing sufficient duty stamp (meterai) and having equal legal force.

PROVIDER

CUSTOMER

(.....)

Title:

(.....)

Title: